

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: November 18, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

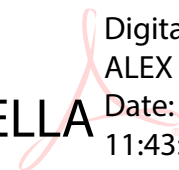
FIFTH AMENDED SCHEDULING ORDER

On November 17, 2025, the parties filed a joint status report and motion to extend the deadline to complete discovery by 10 days. The parties explain that the extension is needed to resolve outstanding discovery disputes and will not impact the briefing schedule. While I find good cause to grant the motion, I caution the parties that no further extensions will be granted for the purpose of resolving discovery disputes. If the parties are unable to reach a compromise on any outstanding discovery issues, they should notify me promptly by email at judges@fmc.gov and I will schedule a discovery conference. The motion is **GRANTED** and the parties are **ORDERED** to follow this amended schedule:

Disclosure of Complainant's expert reports, if any	December 2, 2025
Disclosure of Respondents' expert reports, if any	December 23, 2025
Complete expert depositions	January 16, 2026
Close of discovery	January 16, 2026
Complainant's initial brief, proposed findings of fact, and appendix	February 6, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	March 6, 2026

SO ORDERED.

ALEX
CHINTELLA



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ALEX CHINTELLA
Date: 2025.11.18
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Alex M. Chintella
Administrative Law Judge